

SENATE BILL 796

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 69, Chapter 3, relative to the Tennessee
board of water quality, oil and gas.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 69-3-104(a), is amended by deleting
the subsection and substituting:

(a)

(1) There is created and established the Tennessee board of water
quality, oil and gas, referred to as the "board" in this part, to be composed of
twelve (12) members.

(2) Effective July 1, 2025, the existing membership of the Tennessee
board of water quality, oil and gas is vacated and reconstituted, with the following
new members to be appointed:

(A) The commissioner of environment and conservation, who is
the chair of the board;

(B) The commissioner of health;

(C) The commissioner of agriculture; and

(D) Nine (9) citizen members, each appointed by the governor for
terms of four (4) years.

(3) Each ex officio member may, by official order filed with the director,
designate a representative from such member's staff who has the powers and
are subject to the duties and responsibilities of the ex officio member designating

the representative, except that the representative designated by the commissioner of environment and conservation shall not serve as chair.

(4) The board shall annually elect a vice chair from among its members, who shall preside over all meetings at which the chair is not present.

(5)

(A) The citizen members of the board must be appointed as follows:

(i) One (1) of the nine (9) citizen members must be from the public-at-large. The public member's occupation must not be in the same primary area of interest as any other citizen member of the board;

(ii) One (1) member must represent environmental interests and may be appointed from lists of qualified persons submitted by interested conservation groups, including, but not limited to, the Tennessee conservation league;

(iii) One (1) member must represent counties and may be appointed from lists of qualified persons submitted by interested county services groups, including, but not limited to, the County Services Association;

(iv) One (1) member must represent agricultural interests and may be appointed from lists of qualified persons submitted by interested farm business groups, including, but not limited to, the Tennessee Farm Bureau;

(v) One (1) member must represent the municipalities of the state and may be appointed from lists of qualified persons

submitted by interested municipal groups, including, but not limited to, the Tennessee Municipal League;

(vi) One (1) member must represent small generators of water pollution and may be appointed from lists of qualified persons submitted by interested automotive groups, including, but not limited to, the Tennessee Automotive Association;

(vii) One (1) member must represent manufacturing industries and have current full-time employment with a manufacturing concern in this state, must hold a college degree in engineering or the equivalent, and must have at least eight (8) years of combined technical training and experience in national pollutant discharge elimination system (NPDES) permit compliance and management of wastewater or water treatment facilities, and may be appointed from lists of qualified persons submitted by interested business groups, including, but not limited to, the Tennessee Chamber of Commerce and Industry;

(viii) One (1) member must represent the oil and gas industry; and

(ix) One (1) member must represent oil or gas property owners.

(B) The governor shall consult with the interested groups described in subdivision (a)(5)(A) to determine qualified persons to fill the citizen member positions on the board.

(6) Each appointive member must be a resident and domiciliary of this state.

(7) A member must not be appointed, unless at the time of the member's appointment, the member or the member's employer is in compliance with this part as certified by the commissioner.

(8) The three (3) ex officio members shall hold their positions on the board throughout their respective terms and until the appointment of their successors as such.

(9) All appointments of citizen members are for a full four-year term.

(10) The governor shall remove from the board any appointive member who is absent from three (3) consecutive, regularly scheduled meetings.

(11) Upon the death, resignation, or removal of any appointive member, the governor shall appoint some person representing the same area of interest as the member whose position has been vacated to fill the unexpired term of such member.

(12) Appointive members continue to serve until a successor has been appointed.

(13) In making appointments to the board, the governor shall strive to ensure that the makeup of the board reflect and represent the diversity of persons in this state.

(14)

(A) Notwithstanding subdivision (a)(9), the initial terms of the appointed members of the board terminate as follows:

(i) The terms of the members appointed under subdivisions (a)(5)(A)(i), (ii), and (iii) terminate on June 30, 2027;

(ii) The terms of the members appointed under subdivisions (a)(5)(A)(iv), (v), and (vi) terminate on June 30, 2028; and

(iii) The terms of the members appointed under subdivisions (a)(5)(A)(vii), (viii) and (ix) terminate on June 30, 2029.

(B) Following the expiration of members' initial terms as prescribed in subdivision (a)(14)(A), all appointments to the council are for terms of four (4) years and begin on July 1 and terminate on June 30, four (4) years thereafter.

SECTION 2. Tennessee Code Annotated, Section 69-3-104(b)(5), is amended by deleting "seven (7)" and substituting "nine (9)".

SECTION 3. For the purpose of making appointments, this act takes effect upon becoming a law, the public welfare requiring it. Section 2 of this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.